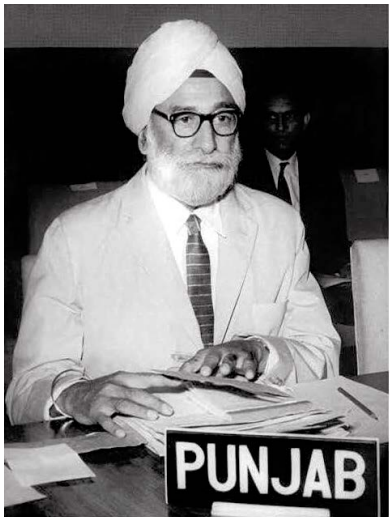


DEMOCRACY *or* TYRANNY

JUSTICE GURNAM SINGH

GURBIR SINGH
President Guru Nanak Education Trust Ludhiana

A General Election is an occasion to reflect on the state of the nation. Prime Minister Modi predicted in America in 2015 that the 21st century belongs to India. Similar claims have been made by politicians and economists since. How realistic is this projection? One yardstick is an economic comparison with countries of East and Southeast Asia as poor as us at our independence in 1947.

World Bank nominal Index (2023) for per capita income in international Dollar 2023 East and South Asia Countries.

COUNTRY	INCOME	RANK
SINGAPORE	87884	5
HONG KONG	51168	19
JAPAN	33950	30
SOUTH KOREA	33147	31
TAIWAN	32339	35
WORLD	13330	66
MALAYSIA	13034	68

COUNTRY	INCOME	RANK
CHINA	12541	72
THAILAND	7298	92
INDONESIA	5109	113
VIETNAM	4316	120
PHILIPPINES	3859	125
INDIA	2612	140
TOTAL	**194**	

We must introspect why we are lagging behind if we are to emerge as a major power. The views of Justice Gurnam Singh, the first non Congress Chief Minister of Punjab, are prophetic. As a leading lawyer, the only permanent member of the Higher Judiciary (Punjab High Court) to head an elected government in India in 1967, he saw the weaknesses of the system and problems faced by the public from both sides of the fence. A nation is as strong as its institutions and norms. He was an advocate for the inherent right to life, liberty and accountability in public life. There could be no democracy without natural rights. He saw the constitution, framed and amended under the shadow of the Punjab bloodshed at partition, as inherently fragile. It acted as a speed breaker. It did not have adequate safeguards for the protection of civil liberties, press freedom and judicial independence. The balance of power lay with a centralised executive armed with draconian laws without check. He said people must take a stand against abuse of power and corruption or lose their liberties. He foresaw a national emergency like 1975 and the present misuse of coercive laws by central agencies. In a letter to Prime Minister Nehru on July 5,1960 he wrote. " The laws may become merely the will and whims of those in power, and as such they can be the most terrible weapons of tyranny." At least Nehru believed in an inclusive secular democracy. But what of his successors? Gurnam Singh believed federalism or greater power to the states was necessary to restore checks and balances and allow the provinces to grow to their potential. He objected to regional demands being branded as anti-national and communal. History and culture were falsified to suit a particular narrative.

Gurnam Singh entered politics when Punjab was communally polarised. He was the principal architect of Hindu-Sikh amity in the state. He wrote to Prime Minister Indira Gandhi on 28th January 1970 that he would not allow this achievement to be undone by the spread of communal virus in rural Punjab. Harmony has prevailed since except when allowed to fall apart in the 1980s. Partition cut off India geopolitically from the landmass of Asia, the Gulf and the North West Frontier, the entry point to the subcontinent. India and Pakistan, integral parts for milleniums now faced each other in hostility. A house divided against itself cannot stand, said Lincoln. Majoritarian ideologies wearing the sleeve of nationalism exploited this divide to demonise the minorities and civil society.

Gurnam Singh felt a flourishing farming community and rural literacy were basic to boost national prosperity and provide a consumer base for industry. As Chief Minister he gave practical shape to the food policy adopted by the country making it self sufficient. He ensured a remunerative price fixation of foodgrains by the center and expansion of the role of FCI to purchase surplus foodgrains. He is the only Chief Minister to head an Indian delegation to the World Food Conference in 1969. He was the first head of government to initiate rural electrification and village link roads. In his brief tenure in office Punjab became the most prosperous state in the country.

After the American Constitutional Convention, a lady asked Benjamin Franklin if they had a Republic or a monarchy. "A Republic if you can keep it" he replied. It is for the Indian people if they want a vibrant democracy, rule of law with guarantees of safety for minorities whether religious, political or ideological. Or drift towards authoritarianism. And an economic order where the bottom half get an equitable share. Do we want to be in perpetual struggle with our neighbors or have the will to resolve issues. A hard road, but that is what statesmanship is about.